

24SMCV02786 24SMCV02786

County: los-angeles

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The court is a little bit puzzled. Plaintiff seeks to continue the MSJ that was filed on June 22, 2026, and is currently set for September 17, 2026—87 days after filing. The case was filed on June 10, 2024—over two years ago. Plaintiff raises two grounds for the continuance.

The first is a conflict because counsel is in trial on the hearing date. The court will inquire about that, and it might warrant a short continuance, but the court is not sure that it warrants a continuance until late October or early November, which is what plaintiff seeks. The second is to allow plaintiff to conduct additional discovery.

Plaintiff states that the Surgical Center's PMK's and Dr. Alessi's depositions are set to go forward on October 23 and October 16, respectively. The court is puzzled as to why that did not occur earlier. It has been two years since the case was filed, and two months since the MSJ was filed. The court will want to see some showing of diligence. As to the deposition on defendants' experts, the court does not understand the argument. Expert discovery typically comes after the MSJ; the court does not understand why this case is different. The question is not really whether plaintiff can undermine defendants' experts through artful examination; the motion will be defeated if plaintiff has an expert who can raise a triable issue of fact. The court also notes that plaintiff's declaration is not sufficient.

Counsel says that more discovery is needed because more discovery is needed. Nowhere is there any indication of the particular fact or evidence that plaintiff believes will be

elicited. The court understands that where counsel has been diligent, the party opposing summary judgment has the right to a continuance to take discovery that is believed will yield evidence to defeat the motion. But that does not extend to a fishing expedition or to a continuance due to lack of diligence.

In short, these papers are not sufficient, except, perhaps for a short continuance due to the conflict.

For now, though, the court's inclination is to DENY the motion WITHOUT PREJUDICE to allow plaintiff to file a more detailed application. If plaintiff is going to file that detailed application, sooner is better than later.